

Gulajar Ahmad v. Executive Engineer, KESCO, Kanpur Nagar

Allahabad High Court · Division Bench · 9 April 2015 · WRIT - C No. 19716 of 2015 · **Writ disposed; competent authority directed to decide reconnection application under s.126 read with clause 6.8, without merits.**

HEADNOTE

On a writ seeking a direction to decide an application for reconnection and restoration of an LMV-2 supply, where theft was alleged and an FIR had been lodged and assessment remained to be done, the Court, without going into merits, held that the grievance could be redressed by the competent authority under section 126 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005, and directed that authority to decide the application preferably within two months.

FACTUAL SUMMARY

The petitioner, a consumer of Kanpur Electricity Supply Company (KESCO), filed a writ petition seeking a direction to decide his application for reconnection and restoration of supply with an LMV-2 load. Theft had been alleged against him and an FIR had been registered. Assessment of electricity charges was still required in that process. After hearing counsel for the petitioner and the Electricity Department, the Division Bench disposed of the petition without examining the merits of the claim.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8

relegation of reconnection and assessment after theft allegation

HOLDING

Without examining the merits, a writ seeking a direction to decide an application for reconnection and restoration of an LMV-2 connection, in a matter involving a theft allegation, an FIR, and pending assessment of charges, was disposed of by directing the competent authority under section 126 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005 to decide the application preferably within two months of production of a certified copy. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment On a writ seeking a direction to decide an application for reconnection and restoration of an LMV-2 supply, where theft was alleged and an FIR had been lodged and assessment remained to be done, the Court, without going into merits ¶ 1

s126-procedural-strictness-notice-and-hearing On a writ seeking a direction to decide an application for reconnection and restoration of an LMV-2 supply, where theft was alleged and an FIR had been lodged and assessment remained to be done, the Court, without going into merits ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECONNECTION AND RESTORATION CLAIM AND OF THE THEFT-RELATED ASSESSMENT

The Court expressly declined to go into the merits of the petitioner's claim. ¶ 1